

25STCV14627 25STCV14627

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV14627 Hearing Date: July 31, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

EQUITABLE

PLAZA, LLC,

Plaintiff,

vs.

CGI

FOODS – EQUITABLE PLAZA, INC.,

Defendant.

Case

No.:

25STCV14627

Hearing

Date:

July 29, 2026

ORDER

GRANTING DEFENDANT CGI FOODS' MOTION FOR ATTORNEY FEES

I. BACKGROUND

Defendant CGI Foods –

Equitable Plaza, Inc. (“CGI”) allegedly failed to pay rent to Plaintiff

Equitable Plaza, LLC (“EP”), causing EP to serve CGI with a notice to pay or quit. CGI allegedly failed to comply with the requirements of the notice before the notice expired. EP sued CGI for unlawful detainer. On January 6, 2026, the Court entered judgment in favor of CGI.

On

March 18, 2026, CGI filed the instant motion for attorney's fees. EP filed an opposition.

II. LEGAL STANDARD

Attorneys' fees are allowed

as costs when authorized by contract, statute, or law. (Code of Civil Procedure § 1033.5, subd. (a)(10)(B).[1])

Civil Code section 1717 states that “[i]n any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs. (Civ. Code, § 1717, subd. (a).) The term “on a contract” is liberally construed to include any action that “involves” a contract. (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 894.) “To determine whether an action is on the contract, we look to the complaint and focus on the basis of the cause of action.” (Brown Bark III, L.P. v. Haver (2013) 219 Cal.App.4th 809, 821.) “[F]ees are properly awarded under section 1717 ‘to the extent that the action in fact is an action to enforce—or avoid enforcement of—the specific contract.’” (Turner v. Schultz (2009) 175 Cal.App.4th 974, 980.) The prevailing party on the contract is “the party who recovered greater relief in the action on the contract.” (Civ. Code, § 1717, subd. (b)(1).)

The attorney bears the burden of proof as to “reasonableness” of any fee claim. (§ 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (Ibid.)

A party's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

IV. DISCUSSION

CGI moves for an award of attorney fees in the amount of \$35,487.50.

A. Entitlement

to Attorney Fees

CGI seeks an award of attorney's fees pursuant to the Court granting CGI's motion for judgment on the pleadings. On January 6, 2026, the Court granted CGI's motion for judgment on the pleadings without leave to amend; as EP cannot amend the complaint to present a viable cause of action, CGI is the 'prevailing' party under section 1032, subd. (a)(4).

This is an action based on contract, namely the lease agreement between CGI and EP. The subject of attorney fees is addressed as follows in the lease:

"16.01. Attorney Fees. If either Landlord or Tenant shall commence any action or other proceeding against the other arising out of, or relating to, this Lease or the Premises, the prevailing party shall be entitled to recover from the losing party, in addition to any other relief, its actual attorneys' fees irrespective of whether or not the action or other proceeding is prosecuted to judgment and irrespective of any court schedule of reasonable attorneys' fees. In addition, Tenant shall reimburse Landlord, upon demand, for all reasonable attorneys' fees incurred in collecting Rent, resolving any actual default by Tenant, securing indemnification as provided in Article X and paragraphs, 16.02, 23.01, and 25.01 herein or otherwise seeking enforcement against Tenant, its sublessees and assigns, of Tenant's obligations under this Lease." (Complaint, Ex. A.)

This action is an action arising out of, or in relation to, the lease of the premises. Therefore, the prevailing party is entitled to recover its actual attorneys' fees.

It is undisputed that CGI is the prevailing party in this action and is entitled to a reasonable amount in attorney fees.

B. Reasonableness
of Fees

1. Reasonable Hourly Rate

In assessing the

reasonableness of hourly billing rates, “the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 272 [“a reasonable hourly rate is the product of a multiplicity of factors . . . [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case”].) “The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “The experienced trial judge is the best judge of the value of professional services rendered in [her] court.” (Ibid.)

CGI seek to recover attorneys’ fees for 2 different attorneys who worked on the case: Raymond Barajas (“Barajas”), at a rate of \$500.00 an hour, and Daniel J. Bramzon (“Bramzon”), at a rate of \$745.00 per hour. (Mot., Bramzon Decl. ¶ 18, Barajas Decl. ¶ 15.) 15.1 hours are attributed to Barajas, while 37.5 hours are attributed to Bramzon.

Barajas argued his rates were reasonable, citing one 2021 case in which he was granted \$300.00 per hour, one 2025 case in which he was granted \$350.00 per hour, and one 2025 case in which he was granted \$500.00 per hour. (Mot., Barajas Decl. at ¶¶ 9-11.) The Court notes the sole cited case at a rate of \$500.00 per hour included a five-day jury trial.

Bramzon cited six cases, beginning in January 2024, in which he was granted \$700.00 per hour, and one case in which he was awarded \$745.00 per hour. (Mot., Bramzon Decl. ¶¶ 17-18.) The Court notes Bramzon stated his rate only increased to \$745.00 per hour on January 1, 2026—after all relevant motion work was filed in this case. (Ibid.)

EP does not specifically take issue with the counsel’s rates, but generally EP argues the fees sought are not reasonable as 1) CGI’s counsel did little work on the case, and 2) the case did not go to trial. Pursuant to Morris v. Hyundai Motor America (2019)

41 Cal.App.5th 24, 41-42, a court may take into account other factors when determining the reasonableness of the rate: “the matter was not complex; that it did not go to trial; that the name partners were doing work that could have been done by lower-billing attorneys; and that all the attorneys were doing work that could have been done by paralegals.” EP claims the work was not complex, as this case was resolved within 7 months of filing and involved no discovery, motion work, or trial preparation on CGI's behalf.

The

Court finds that this was a relatively simple unlawful detainer action. The action was resolved after CGI filed a motion for judgment on the pleadings on the basis EP's service of notice did not comply with the contract. The Court notes that the motion for judgment on the pleadings, excluding the notice and signature pages, is 7 pages long. The case was resolved within 7 months of filing, with little need for extensive litigation and trial preparation.

The

Court will award reasonable attorney's fees for this matter at a rate of \$350.00 for Barajas and \$700.00 to Bramzon. Therefore, the new total, prior to any other reduction, is \$31,535.00.

2. Reasonable Hours

Incurred

“A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.’ (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

A prevailing party's verified billing

invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too

many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (Lunada Biomedical v. Nunez (2014) 240 Cal.App.4th 459, 488.)

CGI seeks to recover attorney fees for a collective 52.6 hours litigating this matter. Counsel did not submit verified billing invoices in support of the expended time, instead presenting individualized lists in each declaration. Therefore, CGI has not presented prima facie evidence that the services listed were necessarily incurred. The Court evaluates all outlined within the two submitted declarations, and finds the following invoices should be subject to reduction:

Date

Biller

Description

Hrs/Rate

Reduction Amount

Reason

9/16/25

DB

Telecons

with client (.5); Review case file and court docket (.1); Telecon with NEH re case status and update (.3)

0.9,
\$700/hr

\$630.00

No

change in case status warranting reviewal or updates. Unclear as to who NEH

is/how NEH is relevant to case.

9/22/25

DB

Various

emails and telecons with client re case status, general concerns, and strategy (.8); telecon with NEH re same (.3)

1.1,

\$700/hr

\$770

No

change in case status warranting reviewal or updates. Unclear as to who NEH is/how NEH is relevant to case.

10/23/25

DB

Draft

Defendant's trial docs including reviewing and analyzing client file to prepare exhibit list (2);

2,

\$700/hr

\$1,400.00

Trial

documentation, outside witness list, never submitted to the Court.

11/19/25

DB

Review

and analyze Plaintiff's latest set of trial docs including witness list, exhibit list, verdict form, statement of case, etc. (.7)

0.7,
\$700/hr

\$490.00

No
new trial documents submitted, appears to be duplicative with 10/23/25 time spent reviewing Plaintiff's trial documents

12/3/25

RB

Finalize
and Forward 1st draft of motion for judgment on the pleadings to DJB for review.

1.1,
\$350/hr

\$385.00

Excessive
time 'finalizing and forwarding' given experience and complexity.

12/4/25

RB

Review
email from DJB re proposed edits to motion for judgment on the pleadings; incorporate DJB edits to motion for judgment on the pleadings; draft notice of motion to attach to motion for judgment on the pleadings; reserve hearing date for motion on Court Portal; file motion for judgment on the pleadings; review email and minute order from court re Dept. 78 unavailability 12/02/25 – 12/05/25; provide ex parte notice to opposing counsel re app for order to shorten time on motion for judgment on the pleadings.

2.3,

\$350/hr

\$805.00

Insufficient

information as to time allocated to each task. Potentially excessive time making edits given experience and complexity. Improper billing for paralegal tasks (drafting notice, attaching notice to motion, reserving hearing date, filing motion, providing notice). Excessive time reviewing minute order RE; unavailability.

1/5/26

DB

Review

and analyze briefings re MJP including follow-up research re caselaw (1.5)

1,

\$700/hr

\$700.00

Excessive

time spent as reply brief already filed, given experience and complexity.

3/18/26

DB

Review

and revise motion for attorneys' fees and finalize re same including supporting declarations

1.5,

\$700/hr

\$1,050.00

Excessive

time spent on motion given experience and complexity.

The remaining tasks are

facially reasonable based upon the papers submitted in this action. Therefore,

the Court strikes \$6,230.00 in attorney fees from the reduced rate total of \$31,535.00.

The Court awards attorney fees totaling \$25,305.00.

V. CONCLUSION

Defendant CGI Foods –

Equitable Plaza, Inc.'s motion for attorney fees is GRANTED, in part. The Court awards attorney fees of \$25,305.00.

CGI is ordered to give notice.

DATED:

July 29, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.